

2.

CASE #	CASE NAME	HEARING NAME
CVME2600110	PARK VS K. HOVNANIAN'S FOUR SEASONS AT HEMET COMMUNITY ASSOCIATION, INC.	DEMURRER, MOTION TO STRIKE ON 1 ST AMENDED COMPLAINT, AND CMC

Tentative Ruling: SUSTAIN the demurrer to the operative First Amended Complaint with 30 days leave to amend. The motion to amend is moot. Continue the CMC to March 2, 2027.

Plaintiff argues that the demurrer was filed too late, more than 30 days after the FAC was served. The rule is that a defendant can demurrer within the same period of time it has to answer the complaint – i.e., *30 days* after service, unless extended by stipulation or court order. (CCP § 430.40(a).) Nonetheless, “[a]n *untimely* demurrer *may* be considered by the court in its discretion.” (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 7:24 citing *Jackson v. Doe* (2011) 192 Cal.App.4th 742, 750 [section 430.40 is permissive, not mandatory, because it uses the term “may” rather than “must.”]) “The trial court may exercise discretion so long as its action does ‘not affect the substantial rights of the parties.’ [Citations].” (*Jackson, supra*.)

Here, the FAC was served on 3/6/26. Plaintiff asserts that Defendants had until 4/5/26 to respond to the FAC, which is within 30 days. Plaintiff acknowledges that since the FAC was served by mail, Defendants had an additional five days to respond up until 4/10/26. (CCP § 1005.) Defendants’ demurrer was filed and served on 4/10/26. Thus, the demurrer was timely filed. And even it was not timely filed, the Court has discretion to allow the demurrer to proceed.

Plaintiff also argues that his Second Amended Complaint (SAC) renders the demurrer moot. Notably, on 6/15/26 Plaintiff filed a “Motion to Amend First Amended Complaint” in which he “deletes” all of the causes of action in the FAC and proposes different entirely causes of action. As a result, Plaintiff concedes that his FAC was defective as described by Defendants.

3.

CASE #	CASE NAME	HEARING NAME
CVME2601780	CITY OF WILDOMAR VS. ESCOBAR	MOTION TO APPOINT RECEIVER ON PETITION

Tentative Ruling: Continue to December 17, 2026, to allow Respondents a further opportunity to abate the nuisance.

Petitioner City of Wildomar (“Petitioner” or the “City”) alleges that the single-family residence at 33475 Loquat Street contains unsafe public nuisance conditions. These include accumulation of 50 inoperable and dismantled vehicles, outdoor storage and junk, debris, dead and overgrown vegetation, and some unpermitted building structures and alterations. Respondent Jennifer Escobar (“Respondent”) allegedly holds title to the property. Respondents Jose Refugio Camarena, Veronica Vera, and Mark Compos allegedly occupy the property. (collectively, “Respondents.”)

Petitioner filed a Petition for Appointment of a Receiver on 3/18/26. (Health & Saf. Code § 17980.7(c).) Petitioner asserts that the property endangers neighboring homes and the public. Petitioner alleges that code enforcement efforts have been directed at the property owner and